POST

Relatively Wrong vs. Absolutely Wrong: Foreign Pollution and the Clean Air Act

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Just because foreign pollution is hard to measure doesn't mean that we can continue assuming for SIP purposes that it does not exist. There is a difference between being relatively wrong and absolutely wrong.

Why is this distinction important? Why do we need to recognize that at least a molecule of foreign pollution is impacting nonattainment areas? First, it's the truth (see link (http://www.google.com/url?sa=t&rct=j&q=fiore%20and%20pollution%20and%20asia%20and%20ppt&source=web&cd=2&ved=0CDUQFjAB&url=http%3A%2F%2Fwww.gfdl.noaa.gov%2Fcms-filesystem-action%2Fuser_files%2Fm1l%2Fhtap_jpl_feb2012.ppt&ei=jK1QUeDUIqSy2wXh5oGIBw&usg=AFQjCNG2xd_mpSzQ_thzWH9cyst5s0T84g)). Second, it opens up the discussion on how to best address foreign pollution. And third, both Congress and EPA have drawn a distinction between foreign pollution and background pollution—saying to States that they do not expect States to offset foreign pollution with additional local controls.

> *"———**"The EPA does not expect States to restrict emissions from domestic sources to offset the impacts of international transport of pollution."**——U.S. EPA (64 Fed. Reg. 35714)*
>
> *———**"T]he EPA will not hold States responsible for developing strategies to "compensate" for the effects of emissions from foreign sources".—-U.S. EPA** (64 Fed. Reg. 35714)."*

> *"——— "Congress clearly wanted to avoid penalizing such areas by not making them responsible for control of emissions emanating from a foreign country over which they have no jurisdiction."—U.S. EPA (see http://www.gpo.gov/fdsys/pkg/FR-1994-08-16/html/94-19884.htm (http://www.gpo.gov/fdsys/pkg/FR-1994-08-16/html/94-19884.htm)).*

Time to acknowledge that at least a molecule of foreign pollution is impacting SIPs. Better to be relatively wrong than absolutely wrong.

The world is changing. We must change with it. Time to transform the SIP process. We can make it happen.

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